

**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY,
FLORIDA**

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT'S NOTICE OF NON-COMPLIANCE AND REQUEST FOR
COURT ENFORCEMENT OF § 607.1604, FLA. STAT., DEMAND FOR
INSPECTION OF CORPORATE RECORDS**

COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully places on the record the following:

1. On August 6, 2025, Defendant filed and served Defendant's Renewed Demand for Inspection of Corporate Books and Records pursuant to § 607.1602 and § 607.1604, Fla. Stat.
2. Pursuant to § 607.1604(2), if a corporation does not permit inspection and copying within five business days after receipt of a shareholder's demand, the shareholder may apply to the circuit court for an order compelling inspection and copying of the requested records.

3. As of August 14, 2025—past the statutory deadline—Defendant has received no acknowledgment, no scheduling, and no substantive reply to the Renewed Demand from Plaintiffs or their counsel.
4. Defendant is the largest single shareholder of DeepGulf, Inc., owning nearly half of its issued stock, and is an extant Director as confirmed by sworn affidavit of Plaintiff Rustin Howard and by Plaintiff's own filings.
5. Defendant has been denied meaningful access to corporate records for years. Limited records produced in July 2019—only after threat of subpoena—revealed serious irregularities and possible fabrications. All subsequent requests have been ignored.
6. The ongoing refusal to allow inspection and copying prejudices Defendant's statutory rights as a shareholder and fiduciary duties as a Director, and deprives him of any ability to ascertain the true state of the corporation's affairs—affairs for which he could theoretically be held liable.
7. This refusal continues a documented pattern in this case, wherein properly-filed motions and statutory demands by Defendant are ignored without hearing or order, while Plaintiff's filings receive

prompt attention—constituting procedural imbalance and impairing due process.

8. Defendant anticipates that Plaintiffs may respond by asserting that he is “free to inspect and copy” the requested records at the corporate address, which also serves as the private residence of Plaintiff Howard. This position is disingenuous. Defendant resides approximately 5,000 miles away, is indigent, and has had his bank account and residence fraudulently seized by a major shareholder of Plaintiff DeepGulf, Inc., with the complicity of the corporation's Chairman. Additionally, Defendant suffers from documented medical incapacity, preventing all long-distance travel, and cannot be compelled to be in the same room as his direct adversary. Plaintiffs are fully aware of these facts, and by insisting on in-person inspection at Howard’s private residence, they would effectively deny access while feigning compliance with discovery obligations.

This conduct, particularly in light of Plaintiffs’ years-long refusal to produce the requested records and the serious allegations of falsified accounts, strongly supports the inference that the records either do not exist or contain material evidence unfavorable to Plaintiffs. This inference is further bolstered by the inconsistencies in the accounts

obtained under threat of subpoena in July 2019, which Defendant has repeatedly attempted to address. However, Plaintiffs have opposed these efforts for the past six years with a persistent wall of silence that the Court has yet to allow Defendant to penetrate.

WHEREFORE, Defendant respectfully requests that this Court:

- a. Compel Plaintiffs to permit remote inspection of the corporate records identified in the August 6, 2025 Renewed Demand, by electronic means if necessary given Defendant's documented inability to travel; or
- b. In the alternative, enter an order deeming the requested facts admitted for purposes of this litigation, in light of Plaintiffs' refusal to engage in the discovery process and their continued obstruction of Defendant's efforts to obtain the relevant records; and
- c. Grant such other relief as the Court deems just and proper.

Respectfully submitted on this 14th day of August, 2025.

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CERTIFICATE OF SERVICE

I hereby certify that, on this 14th day of August, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

